Squaricle Group Sexual Harassment Prevention Policy

What is its purpose?

The purpose of this policy is to set out the proactive steps Squaricle Group takes to prevent sexual harassment in the course of work.

Squaricle Group is committed to providing a working, learning and delivery environment where everyone is treated with dignity and respect. Sexual harassment is unlawful, unacceptable and contrary to Squaricle Group's One Team value.

This policy explains what sexual harassment is, the standards of behaviour expected, how Squaricle Group assesses and manages sexual harassment risks, and how concerns involving employees, contracted workers, Associates, clients, learners, suppliers, contractors, visitors, venues or other third parties will be prevented, reported and addressed.

This policy should be read alongside the Squaricle Group Harassment and Bullying Policy, which sets out the process for raising and investigating complaints of harassment, bullying and victimisation.

Why is it important to us?

Enabling and encouraging an inclusive, respectful and safe working environment is a key focus for Squaricle Group.

Squaricle Group has a zero-tolerance approach to sexual harassment. This means we will not ignore, excuse, minimise or tolerate sexual harassment, whether it occurs in person, online, in writing, by phone, at client sites, at training events, during work-related travel, at work-related social events, or through interactions with clients, learners, or other third parties.

Squaricle Group recognises that preventing sexual harassment requires proactive action. We will take all reasonable steps to prevent sexual harassment in the course of work, including assessing risks, communicating expectations, training workers and Associates, acting promptly where concerns are raised, and reviewing the effectiveness of preventative measures.

Why is it important to our clients and learners?

This policy enables clients and learners to have confidence that Squaricle Group provides a safe, inclusive and professional learning environment.

As a training and learning organisation, Squaricle Group recognises that its people may work in a range of environments, including client premises, virtual learning environments, workshops, events, venues and informal work-related settings. These environments can involve interaction with clients, learners, suppliers, contractors, visitors and venue staff.

Squaricle Group expects all individuals involved in its work, including clients and learners to behave respectfully and professionally. Sexual harassment by or towards any person involved in Squaricle Group work is unacceptable and will be addressed appropriately.

Who within the organisation does it apply to?

This policy applies to all Squaricle Group employees, workers, contracted workers and Associates when working on any Squaricle Group project. It also applies to job applicants where relevant to recruitment or selection.

Clients, learners, suppliers, contractors, visitors, venue staff and other third parties are not Squaricle Group employees or workers. However, Squaricle Group expects them to behave respectfully and professionally when interacting with Squaricle Group workers or participating in Squaricle Group work, training or events. Squaricle Group will take appropriate and proportionate steps to prevent and respond to sexual harassment involving third parties, particularly where this affects Squaricle Group workers in the course of their work.

When will it be effective from?

July 2026

What are our responsibilities and accountabilities?

<u>Definitions</u>

Sexual harassment is unwanted conduct of a sexual nature which has the purpose or effect of either:

- violating an individual's dignity; or
- creating an intimidating, hostile, degrading, humiliating or offensive environment for that individual.

Sexual harassment can happen even where the person responsible says they did not intend to cause offence. The impact on the person affected, the circumstances of the conduct, and whether it is reasonable for the conduct to have had that effect will be considered.

Sexual harassment may be a single incident or a pattern of behaviour. It may be obvious or subtle. It may be directed at an individual, aimed at a group, or form part of a wider workplace or learning culture.

Examples of sexual harassment may include:

- unwanted physical contact;
- sexual comments, remarks or jokes;
- comments about a person's body, clothing, appearance, sex life or relationships;
- sexual gestures, staring, leering or suggestive behaviour;
- asking intrusive questions about someone's private or sexual life;
- displaying, sending or sharing pornographic or sexual images, messages, videos or other content;
- making sexual comments or jokes about someone's sexual orientation or gender reassignment;
- unwanted flirting, propositions or sexual advances;
- coercion, pressure or requests for sexual favours;
- unwanted hugging, touching or physical contact;
- sexual assault or rape.

What some people may consider to be joking, "banter" or part of a workplace culture may still amount to sexual harassment if the behaviour is sexual in nature, unwanted, and violates someone's dignity or creates an intimidating, hostile, degrading, humiliating or offensive environment.

Sexual harassment can occur:

- face to face;
- in writing;
- by email, messaging platform, letter or document;
- by phone or video call;

- on social media or online;
- in virtual learning environments, chat functions or breakout rooms;
- at client sites, venues, events or conferences;
- during travel, overnight stays or work-related social activities.

Sexual harassment may be carried out by, or directed towards, employees, workers, Associates, managers, leaders, clients, learners, suppliers, contractors, visitors, venue staff or other third parties.

Prevention duty

Squaricle Group will take all reasonable steps to prevent sexual harassment in the course of work.

This includes taking proactive and proportionate steps to identify risks, reduce those risks, communicate standards, provide training, respond promptly to concerns, support those affected, address inappropriate behaviour, and monitor the effectiveness of preventative action.

Squaricle Group will not wait for a complaint before acting where risks are identified.

Sexual Harassment Prevention Risk Assessment

Squaricle Group will maintain a documented Sexual Harassment Prevention Risk Assessment and action plan.

The risk assessment will consider the circumstances in which sexual harassment could occur, including:

- training delivery;
- client premises;
- virtual learning delivery;
- online meetings and breakout rooms;
- learner and delegate interaction;
- one-to-one meetings;
- work-related travel;
- overnight stays;
- conferences and events;
- work-related social activities;
- use of messaging platforms, email and social media;
- power imbalance, seniority, influence or dependency;

- lone working or isolated working arrangements;
- use of external venues;
- previous complaints, concerns, themes or incident patterns;
- third-party interaction with clients, learners, suppliers, contractors, visitors and venue staff.

The risk assessment will identify reasonable steps to prevent or reduce risks. Actions may include policy updates, training, communication, changes to delivery arrangements, event controls, client or delegate expectations, contract wording, reporting routes, escalation processes or additional support arrangements.

The risk assessment and action plan will be reviewed at least annually and sooner where there is:

- a complaint or concern involving sexual harassment;
- a significant change in working arrangements;
- a new delivery model, venue or client environment;
- a new or increased third-party risk;
- evidence that existing controls may not be effective;
- updated legislation, regulation or official guidance.

Third-party harassment

Squaricle Group will take all reasonable steps to prevent sexual harassment by third parties encountered in the course of work.

Third parties may include clients, learners, suppliers, contractors, visitors, venue staff, event attendees or any other person encountered during Squaricle Group work.

Sexual harassment by a third party is unacceptable. Squaricle Group will take appropriate steps to prevent and respond to third-party sexual harassment, which may include:

- communicating expected standards of behaviour to clients and learners;
- including appropriate conduct expectations in learner, delegate or client communications;
- using client terms, contracts, statements of work or joining instructions to set expectations where appropriate;
- briefing trainers, managers and Associates on escalation routes;
- supporting individuals to end or pause unsafe interactions;

- removing or excluding individuals from sessions, events or online spaces where appropriate;
- escalating concerns to client contacts or senior representatives;
- reviewing whether it is safe and appropriate to continue work with a client, learner, supplier, contractor, venue or other third party;
- recording incidents and reviewing lessons learned;
- updating risk assessments and controls following concerns.

Workers and Associates are encouraged to report third-party sexual harassment whether it is experienced directly, witnessed, disclosed by someone else, or identified as a risk.

No worker or Associate should be expected to tolerate sexual harassment from a client, learner, or other third party because of commercial, delivery or relationship considerations.

Client and learner expectations

Squaricle Group expects clients and learners to behave respectfully and professionally.

Where appropriate, Squaricle Group may communicate expectations before or during training, events or delivery activities. This may include expectations that participants must not:

- make sexual comments, jokes or gestures;
- send, show or share sexual content;
- make unwanted personal or sexual remarks;
- touch another person without consent;
- use online chat, direct messaging or breakout rooms inappropriately;
- retaliate against anyone who raises a concern;
- behave in a way that creates an intimidating, hostile, degrading, humiliating or offensive environment.

Where a client, learner or other third party breaches these expectations, Squaricle Group may take appropriate action, including warning the individual, pausing the session, removing the person from the session, escalating the matter to the client, ending delivery, refusing future attendance or taking any other proportionate step.

Training and communication

Squaricle Group will provide appropriate training and communication to support the prevention of sexual harassment.

Training may include:

- what sexual harassment is;
- examples of unacceptable behaviour;
- the difference between intention and impact;
- bystander responsibilities;
- how to report concerns;
- how managers and leaders should respond to concerns;
- third-party harassment risks;
- risks in training delivery, online learning and client environments;
- responsibilities under this policy and the Harassment and Bullying Policy.

Managers and leaders will be expected to understand their responsibilities to prevent sexual harassment, respond appropriately to concerns, avoid retaliation, maintain confidentiality where possible, and escalate matters promptly.

Associates and contracted workers working on Squaricle Group projects will be expected to understand and comply with the standards in this policy.

Training and communication will be reviewed periodically and updated where risks, legislation, guidance or organisational arrangements change.

Reporting concerns

Any person who experiences, witnesses or becomes aware of sexual harassment, or a risk of sexual harassment, should report it as soon as possible.

Concerns may be raised with:

- the individual's line mentor;
- the Group Director of Operations;
- the Managing Director;
- another appropriate manager or member of the employed team;
- the route set out in the Harassment and Bullying Policy;
- the route set out in the Whistleblowing Policy, where the concern may amount to a protected disclosure.

Individuals are not required to raise sexual harassment informally before making a formal complaint. Informal resolution will not normally be appropriate for serious allegations, sexual assault, repeated sexual harassment, abuse of power, victimisation or where the individual does not feel safe or comfortable using an informal approach.

All concerns will be taken seriously, handled sensitively and addressed as promptly as reasonably practicable.

Support and interim measures

Squaricle Group will consider appropriate support and interim measures where sexual harassment is reported or identified.

Support and interim measures may include:

- welfare check-ins;
- signposting to appropriate support;
- changes to reporting lines;
- temporary working arrangements;
- steps to limit contact between parties;
- changes to delivery arrangements;
- removal from a particular session, event or client environment;
- additional management support or supervision, (such as manager check-ins, a named escalation contact, or manager attendance at relevant meetings, sessions or events where this is appropriate to reduce risk);
- support to report a matter to the police where the individual wishes to do so.

Interim measures will be considered carefully and should not disadvantage the person who has raised the concern unless this is unavoidable and discussed with them.

Responding to concerns

Concerns about sexual harassment will normally be handled under the Squaricle Group Harassment and Bullying Policy and, where appropriate, the Disciplinary Procedure.

Where the concern involves a third party, Squaricle Group will consider what action is reasonable and proportionate in the circumstances. This may include action relating to the third party, the client relationship, the learning environment, contractual arrangements, future delivery or safeguarding and safety considerations.

Where an allegation may also amount to a criminal offence, nothing in this policy prevents or discourages any individual from contacting the police.

Victimisation and retaliation

Squaricle Group will not tolerate victimisation or retaliation against any person because they have raised a concern, made a complaint, supported someone else's complaint, provided information, acted as a witness, participated in an investigation, or raised a protected disclosure.

Victimisation under the Equality Act 2010 can occur where someone is subjected to a detriment because they have done, are believed to have done, or may do a protected act. Protected acts include raising an allegation of discrimination or harassment, giving evidence or information in connection with such an allegation, or doing anything else for the purposes of the Equality Act 2010.

Examples of victimisation or retaliation may include:

- treating someone less favourably because they raised or supported a concern;
- excluding them from work, projects, meetings, training, events or opportunities;
- reducing or changing their work unfairly;
- criticising, blaming or labelling them as a troublemaker;
- putting pressure on them to withdraw a complaint or not participate in an investigation;
- making negative comments about them to colleagues, clients, learners or Associates;
- subjecting them to further bullying, harassment or unwanted behaviour;
- ending or reducing work opportunities because they raised a concern.

Separately, where a worker raises a concern that may amount to a protected disclosure under whistleblowing legislation, including a disclosure about sexual harassment where the legal test is met, they are protected from detriment or dismissal because they raised that concern.

Anyone who believes they have experienced victimisation or retaliation should report this promptly using the reporting routes in this policy, the Harassment and Bullying Policy, or the Whistleblowing Policy, as appropriate.

Victimisation or retaliation may be treated as a disciplinary matter and may result in action under the Squaricle Group Disciplinary Procedure.

Confidentiality and data protection

Sexual harassment concerns will be handled confidentially wherever possible. However, confidentiality cannot always be guaranteed, particularly where Squaricle Group needs to investigate, take action, protect individuals, comply with legal obligations or prevent further harm.

Records relating to concerns, investigations, outcomes, support measures, risk assessments and preventative actions will be stored securely and accessed only by those with a legitimate need to know.

Records will be retained only for as long as necessary in accordance with Squaricle Group's data retention arrangements, privacy notices and legal obligations under the UK GDPR and Data Protection Act 2018. Special category data will be processed only where a lawful basis and Article 9 condition apply.

Monitoring and review

Squaricle Group will monitor the effectiveness of this policy and its preventative measures.

Monitoring may include:

- review of the Sexual Harassment Prevention Risk Assessment;
- review of the action plan;
- review of complaints, concerns and incident themes;
- review of third-party incidents or risks;
- review of training completion;
- review of manager and Associate awareness;
- review of client, learner, delegate and venue controls;
- post-incident lessons learned;
- updates following legislative, regulatory or official guidance changes.

Procedure

Concerns about sexual harassment should be raised and managed in accordance with the Squaricle Group Harassment and Bullying Policy.

Where a concern involves sexual harassment, Squaricle Group will consider:

- whether immediate support or interim measures are needed;

- whether any safety or safeguarding risk exists;
- whether the matter may involve a criminal offence;
- whether the Whistleblowing Policy may also apply;
- whether third-party action or client escalation is required;
- whether the Sexual Harassment Prevention Risk Assessment should be reviewed;
- whether further preventative action is required.

Individuals are encouraged to keep a written record of incidents where they are able to do so, including dates, times, locations, witnesses, screenshots, messages or other relevant information. However, the absence of a written record will not prevent Squaricle Group from considering a concern.

Whistleblowing & Protected Disclosures

Squaricle Group recognises that concerns relating to sexual harassment may constitute a protected disclosure under the Employment Rights Act 1996, as amended.

Where an individual reports sexual harassment, particularly where this relates to systemic issues, organisational culture, a risk to others, or a failure to take reasonable steps or all reasonable steps to prevent harassment, this may qualify as a protected disclosure where the legal test is met.

Individuals making protected disclosures are protected from detriment or dismissal as a result of raising the concern.

Squaricle Group will ensure that any concerns of this nature are handled in accordance with both this policy and the Whistleblowing Policy, and that no individual suffers retaliation for raising concerns in good faith.

Criminal Offences

Where an allegation may also amount to a criminal offence, Squaricle Group may still take appropriate internal action where it is fair and reasonable to do so.

Squaricle Group will consider the circumstances, including safeguarding or safety risks, the availability of evidence, the impact on any police investigation, and the need to act promptly.

Nothing in this policy prevents or discourages any individual from contacting the police.

Record Keeping

The Group Director of Operations will keep a record of:

- concerns or complaints raised;
- steps taken to support those affected;
- interim measures considered or implemented;
- investigation steps and outcomes;
- action taken in relation to employees, workers, Associates or third parties;
- any appeal and final decision;
- any related disciplinary hearing and outcome;
- sexual harassment risk assessments;
- action plans and preventative measures;
- training and communication activity;
- monitoring and review activity.

Records will be handled confidentially, stored securely, accessed only by those with a legitimate need to know, and retained only for as long as necessary in accordance with Squaricle Group's data retention arrangements and its obligations under the UK GDPR and Data Protection Act 2018.

Outside authorities that are responsible or require the policy or that can support the policy

The Equality Act 2010 outlaws harassment and sexual harassment in the workplace and forms part of UK law.

The Worker Protection (Amendment of Equality Act 2010) Act 2023 introduced a proactive employer duty to take reasonable steps to prevent sexual harassment of employees in the course of employment.

The Employment Rights Act 2025 introduces further changes, including the requirement for employers to take all reasonable steps to prevent sexual harassment and provisions relating to third-party harassment.

The Equality and Human Rights Commission provides technical guidance on sexual harassment and harassment at work.

Acas provides guidance for employers on preventing sexual harassment, handling complaints and creating a sexual harassment policy.

Sources of further knowledge to support understanding and personal development

Equality Act 2010 guidance: https://www.gov.uk/guidance/equality-act-2010-guidance

Acas guidance on sexual harassment: https://www.acas.org.uk/sexual-harassment

Acas guidance on creating a sexual harassment policy: https://www.acas.org.uk/sexual-harassment/creating-a-sexual-harassment-policy

Acas guidance on preventing sexual harassment: https://www.acas.org.uk/sexual-harassment/steps-for-employers-to-prevent-sexual-harassment

Equality and Human Rights Commission technical guidance: https://www.equalityhumanrights.com/guidance/sexual-harassment-and-harassment-work-technical-guidance

Equality and Human Rights Commission employer 8-step guide: https://www.equalityhumanrights.com/employer-8-step-guide-preventing-sexual-harassment-work

Related documents and procedures

- Squaricle Group Harassment and Bullying Policy
- Squaricle Group Disciplinary Procedure
- Squaricle Group Equal Opportunities Policy
- Squaricle Group Whistleblowing Policy
- Squaricle Group Data Protection Policy
- Squaricle Group Sexual Harassment Prevention Risk Assessment and Action Plan

Impact and effectiveness

The impact and effectiveness of this policy will be monitored through periodic review of:

- the Sexual Harassment Prevention Risk Assessment;
- action plan completion;
- training completion;
- concerns, complaints and incident themes;
- third-party risks and incidents;
- employee, worker and Associate feedback;
- lessons learned following complaints or concerns;
- changes in legislation, regulation or official guidance.

This policy will be reviewed at least annually and sooner where there is a relevant legislative change, regulatory update, complaint, incident, identified risk or organisational change.